

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #06	CCRB Case #: 201900890	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/25/2019 11:44 PM	Location of Incident: the front of § 87(2)(b)	18 Mo. SOL 3/11/2021	Precinct: 43		
Date/Time CV Reported Tue, 01/29/2019 4:48 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/29/2019 4:48 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Adam Conlin	04118	946871	SRG
2. DTS Matthew Demaio	441	952663	SRG
3. LT Erik Lubrano	00000	924088	SRG

Officer(s)	Allegation	Investigator Recommendation
A . LT Erik Lubrano	Abuse: Lieutenant Erik Lubrano stopped § 87(2)(b)	A . Unsubstantiated
B . DTS Adam Conlin	Abuse: Detective Adam Conlin stopped § 87(2)(b)	B . Unsubstantiated
C . DTS Matthew Demaio	Abuse: Detective Matthew Demaio stopped § 87(2)(b)	C . Unsubstantiated
D . DTS Adam Conlin	Abuse: Detective Adam Conlin frisked § 87(2)(b)	D . Unsubstantiated
E . LT Erik Lubrano	Abuse: Lieutenant Erik Lubrano frisked § 87(2)(b)	E . Unsubstantiated
F . DTS Adam Conlin	Abuse: Detective Adam Conlin searched § 87(2)(b)	F . Unsubstantiated
G . LT Erik Lubrano	Abuse: Lieutenant Erik Lubrano searched § 87(2)(b)	G . Unsubstantiated
H . DTS Matthew Demaio	Abuse: Detective Matthew Demaio threatened to arrest § 87(2)(b)	H . Unsubstantiated
I . LT Erik Lubrano	Discourtesy: Lieutenant Erik Lubrano acted discourteously toward § 87(2)(b)	I . Unsubstantiated
J . DTS Adam Conlin	Abuse: Detective Adam Conlin refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . LT Erik Lubrano	Abuse: Lieutenant Erik Lubrano failed to provide § 87(2)(b) with a business card.	K . Unsubstantiated
L . DTS Adam Conlin	Abuse: Detective Adam Conlin failed to provide § 87(2)(b) with a business card.	L . Unsubstantiated
M . DTS Matthew Demaio	Abuse: Detective Matthew Demaio failed to provide § 87(2)(b) with a business card	M . Unsubstantiated

Case Summary

On January 29, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On January 25, 2019, at approximately 11:44 p.m., § 87(2)(b) was walking alone in front of § 87(2)(b) in the Bronx when Lieutenant Erik Lubrano, Det. Adam Conlin, and Det. Matthew Demaio of the Strategic Response Group's Citywide Anti-Crime Team stopped him (**Allegations A-C: Abuse of Authority, unsubstantiated**). Lieutenant Lubrano and Det. Conlin immediately proceeded to frisk either side of § 87(2)(b)'s body (**Allegations D and E: Abuse of Authority, unsubstantiated**). Lieutenant Lubrano and Det. Conlin then reached into § 87(2)(b)'s pockets (**Allegations F and G: Abuse of Authority, unsubstantiated**). Lieutenant Lubrano recovered a knife from one of § 87(2)(b)'s pockets. Det. Demaio accused § 87(2)(b) of having marijuana and stated that he could arrest § 87(2)(b) for the marijuana, the knife and if he did not provide his name and address (**Allegation H: Abuse of Authority, unsubstantiated**). § 87(2)(b) provided his name and address to officers. Lieutenant Lubrano threw § 87(2)(b)'s knife onto the ground (**Allegation I: Discourtesy, unsubstantiated**) and the three officers returned to their vehicle. § 87(2)(b) asked for Det. Conlin's name which he provided as "Montana" (**Allegation J: Abuse of Authority, unsubstantiated**) before all three officers drove away. § 87(2)(b) did not receive any business cards (**Allegations K-M: Abuse of Authority, unsubstantiated**).

No arrests were made and no summonses were issued. No video footage was obtained.

Findings and Recommendations

Allegation A – Abuse of Authority: Lieutenant Erik Lubrano stopped § 87(2)(b)

Allegation B – Abuse of Authority: Detective Adam Conlin stopped § 87(2)(b)

Allegation C – Abuse of Authority: Detective Matthew Demaio stopped § 87(2)(b)

§ 87(2)(g)

It is undisputed that on January 25, 2019, at approximately 11:44 p.m., Lieutenant Lubrano, Det. Conlin, and Det. Demaio approached and spoke with § 87(2)(b) in the vicinity of § 87(2)(b) in the Bronx (BR 01-04).

§ 87(2)(b) stated that, as he walked to his house on § 87(2)(b), an unmarked police vehicle approached him and the driver called out, "Hey," and asked what § 87(2)(b) was doing. § 87(2)(b) was unaware that the individual was a police officer and kept walking home without answering the question. Lieutenant Lubrano, Det. Conlin, and Det. Demaio immediately exited the vehicle and walked up to § 87(2)(b) on the sidewalk. Det. Conlin then put an arm across § 87(2)(b)'s shoulders and gripped his right upper arm. Det. Conlin eventually told § 87(2)(b) that he had no rights because officers stopped him for having marijuana.

Lieutenant Lubrano's, Det. Conlin's, and Det. Demaio's corroborated each other's testimonies. They all stated that they were on routine patrol in the area when they observed § 87(2)(b) leave a store on Westchester Avenue with a food takeout box, walk at a fast pace, and turn up a side street. § 87(2)(b) continuously turned his head to look over his shoulders. § 87(2)(b)'s behavior gave the officers the impression that § 87(2)(b) was worried he was being followed and feared for his own safety. Lieutenant Lubrano, the operator of the vehicle, initially believed there was also a possibility that § 87(2)(b) had stolen the food. When he

drove the car to meet § 87(2)(b) on Ward Avenue, Lieutenant Lubrano observed how nervous § 87(2)(b) appeared and no longer suspected him of committing a crime.

The officers stopped alongside § 87(2)(b) and Lieutenant Lubrano identified himself as an officer and asked if § 87(2)(b) was okay. § 87(2)(b) did not respond. Lieutenant Lubrano and Det. Demaio interpreted § 87(2)(b)'s silence as apprehension to speak to police, possibly because he did not want any possible assailants to hear him. The officers left the vehicle to speak with § 87(2)(b) on the sidewalk to have a quieter conversation and make him feel more comfortable. In the course of their conversation, Det. Conlin and Det. Demaio recalled § 87(2)(b) independently state he had some marijuana on him. However, both detectives stated that the officers were not concerned with marijuana possession and none of them ever questioned § 87(2)(b) about it. No officer ever physically interacted with § 87(2)(b). All officers stated § 87(2)(b) was free to leave and that they only approached him to make sure he was okay.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A-C be unsubstantiated.**

Allegation D – Abuse of Authority: Detective Adam Conlin frisked § 87(2)(b)

Allegation E – Abuse of Authority: Lieutenant Erik Lubrano frisked § 87(2)(b)

Allegation F – Abuse of Authority: Detective Adam Conlin searched § 87(2)(b)

Allegation G – Abuse of Authority: Lieutenant Erik Lubrano searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that after Det. Conlin grabbed his upper arm, Det. Conlin proceeded to frisk the left side of § 87(2)(b)'s torso, back, and waist, and the front left pocket of his sweatpants. Simultaneously, Lieutenant Lubrano frisked the same areas on § 87(2)(b)'s right side. § 87(2)(b) removed a plastic box containing a slice of cheesecake he bought from his sweatshirt pocket to show officers that it was not dangerous. Det. Conlin asked § 87(2)(b) if he had stolen the cheesecake, what he was doing, and where he was going. When § 87(2)(b) questioned Det. Conlin as to why he needed to know that information, Det. Conlin told him he had no rights and that officers could stop him for having marijuana. Det. Conlin then searched § 87(2)(b)'s left sweatshirt pocket and sweatpants. Nothing was removed. Lieutenant Lubrano simultaneously searched the § 87(2)(b)'s right sweatshirt pocket and sweatpants. Lieutenant Lubrano removed a small vial containing marijuana from § 87(2)(b)'s sweatshirt, inspecting it without comment before placing it back in § 87(2)(b)'s pocket. Lieutenant Lubrano removed a two- to three-inch folding knife from § 87(2)(b)'s sweatshirt pocket and held onto it until officers left the scene.

As noted in **Allegations A-C**, all three officers denied ever physically interacting with § 87(2)(b). They all stated that no officer ever frisked or searched § 87(2)(b).

Det. Conlin and Det. Demaio were only aware that § 87(2)(b) had marijuana because § 87(2)(b) independently stated so when officers first approached him. Det. Demaio observed a knife sticking out of one of § 87(2)(b)'s pockets. No officer ever removed or handled the knife. Det. Conlin testified that he did not observe any knife on § 87(2)(b)'s person.

However, he was aware that Det. Demaio observed a knife during the interaction because Det. Demaio mentioned it to § 87(2)(b) as explained below in **Allegation H**.

Lieutenant Lubrano was never aware of any marijuana or a knife on § 87(2)(b)'s person.

§ 87(2)(b) stated that following a frisk and a search, the marijuana and knife were recovered. However, all three officers denied any sort of physical interaction with § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D-G** be **unsubstantiated**.

Allegation H – Abuse of Authority: Detective Matthew Demaio threatened to arrest § 87(2)(b)

After officers searched him, § 87(2)(b) complained to the officers about their actions. He alleged that an officer responded by telling him that he could arrest § 87(2)(b) for having marijuana and that § 87(2)(b) could be “locked up” for the knife that officers found. When the same officer asked for § 87(2)(b)'s name and address and § 87(2)(b) refused to provide that information, the officer told § 87(2)(b) that he would bring him to the stationhouse if he did not comply.

Though § 87(2)(b)'s description of the subject of this allegation most closely resembled Det. Conlin, Det. Conlin and Det. Demaio both stated that only Det. Demaio discussed the possibility of § 87(2)(b) being arrested for the contraband he was carrying. § 87(2)(g)

All officers denied threatening to arrest § 87(2)(b). Both Det. Conlin and Det. Demaio stated that Det. Demaio advised § 87(2)(b) not to carry a knife and marijuana in public because he could be arrested or receive a summons for doing so. As noted in **Allegations D-G**, Det. Demaio advised § 87(2)(b) based on § 87(2)(b)'s verbal admission of carrying marijuana and his knife being in plain view. Det. Demaio testified that his statement was not a threat but advice. Det. Demaio and Det. Conlin stated that the officers were not interested in violations.

Lieutenant Lubrano did not recall any officer threaten to arrest § 87(2)(b) or any discussion of § 87(2)(b) being arrested at any point.

In New York City, it is unlawful for a person to wear outside of his clothing or carry in open view any knife unless that person is using the knife for a lawful purpose (BR 05) (Administrative Code 10-133).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation H** be **unsubstantiated**.

Allegation I – Discourtesy: Lieutenant Erik Lubrano acted discourteously to § 87(2)(b)

§ 87(2)(b) stated that, as officers returned to their vehicle to leave the scene, Lieutenant Lubrano threw § 87(2)(b)'s knife on the ground beside § 87(2)(b)'s feet.

Lieutenant Lubrano stated no contraband was revealed or discussed during the incident. When presented a photograph of the knife § 87(2)(b) was carrying, Lieutenant Lubrano had no recollection of a knife being present or discussed during the incident.

While Det. Conlin and Det. Demaio were aware of § 87(2)(b) carrying a knife, both of them stated that no officer ever handled the knife and that it remained in § 87(2)(b)'s pocket throughout the incident.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation I** be **unsubstantiated**.

Allegation J – Abuse of Authority: Detective Adam Conlin refused to provide his name to § 87(2)(b)

Once the officers returned to their vehicle, § 87(2)(b) asked through an open car door window for Det. Conlin's name. Det. Conlin provided his name as, "Montana."

Lieutenant Lubrano did not recall if Det. Conlin was asked for his name and stated that no officer ever refused to provide their name to § 87(2)(b) nor did any officer provide their name as "Montana." Det. Conlin and Det. Demaio both stated that § 87(2)(b) never asked for any officer's name.

§ 87(2)(g)

It is therefore recommended that **Allegation J** be **unsubstantiated**.

Allegation K – Abuse of Authority: Lieutenant Erik Lubrano failed to provide § 87(2)(b)

with a business card.

Allegation L – Abuse of Authority: Detective Adam Conlin failed to provide § 87(2)(b)

with a business card.

Allegation M – Abuse of Authority: Detective Matthew Demaio failed to provide § 87(2)(b)

with a business card.

It is undisputed that § 87(2)(b) never asked for a business card and did not receive any during the incident.

A business card is to be offered to a civilian by an officer if that civilian is stopped, frisked, and/or searched by that officer (BR 06) (Patrol Guide Procedure 203-09).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations K-M** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 07).
- Lieutenant Lubrano has been a member of service for 19 years and has been a subject of 27 allegations in ten other complaints, including one substantiation and five citations for other misconduct (see officer history):
 - 200606390 involved a substantiated allegation of a vehicle search. The Board recommended Charges and the NYPD imposed Instructions.
 - § 87(2)(g), § 87(4-b)
 - § 87(2)(g)
 - § 87(2)(g)
- Det. Conlin has been a member of service for ten years and has been a subject of 22 allegations in nine other complaints, including one substantiation (see officer history):
 - 201309936 included one substantiation of a search of person. The Board recommended Command Discipline and the NYPD imposed Formalized Training.
 - § 87(2)(g)
 - § 87(2)(g)
- Det. Demaio has been a member of service for six years and has been a subject of 21 allegations in six other complaints, including one substantiation § 87(4-b) § 87(2)(g) (see officer history):
 - 201606783 included one substantiation of a vehicle search. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - § 87(4-b) § 87(2)(g)
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially accepted mediation but later requested to have his complaint investigated.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On June 17, 2019, a FOIL request was submitted with the New York City Comptroller's Office and will be added to the case file upon receipt.

Squad No.: 6

Investigator:	_____	<u>Inv. Benjamin Shelton</u>	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	<u>IM Jessica Peña</u>	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date